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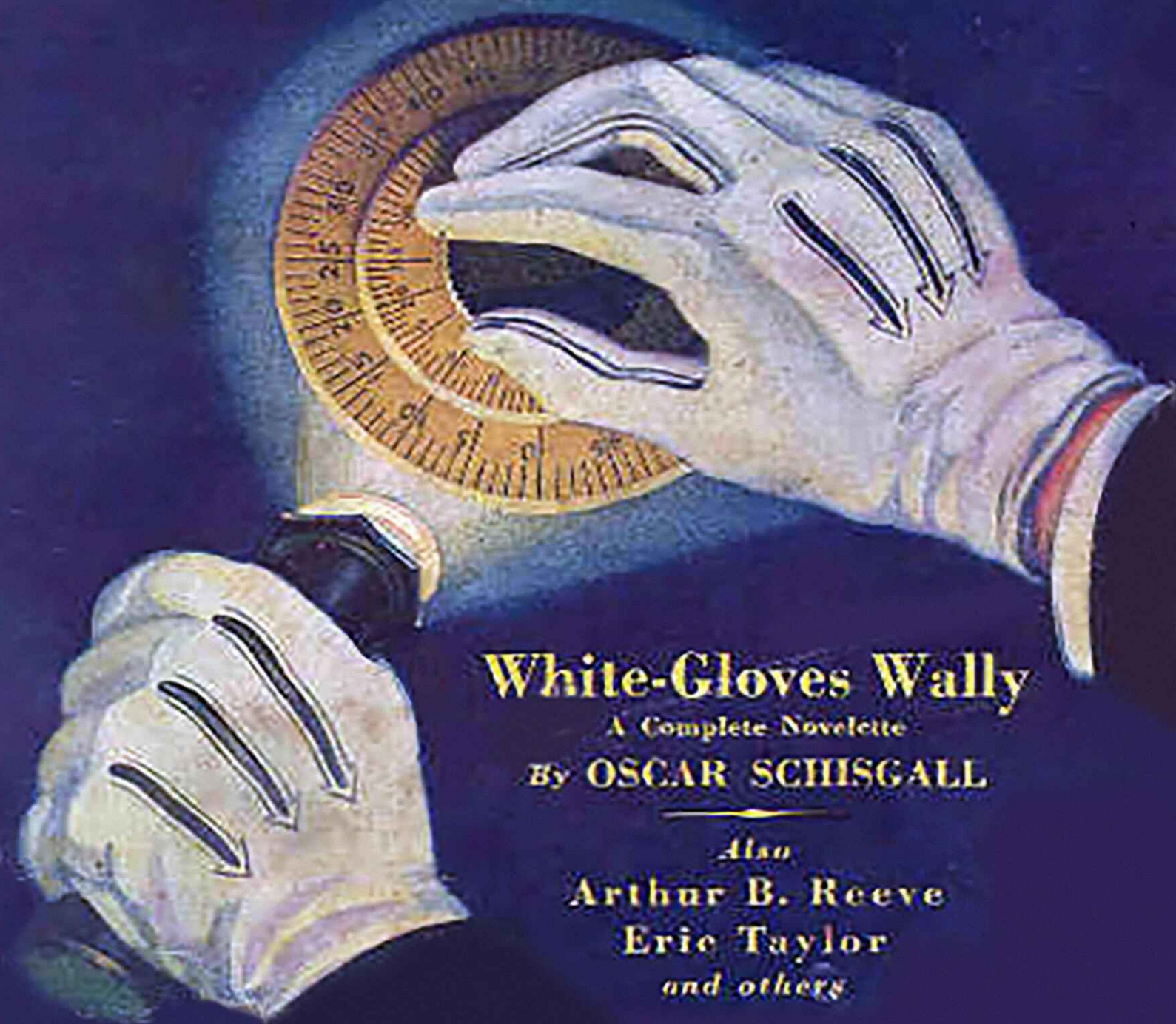
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A Complete Novelette

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Also

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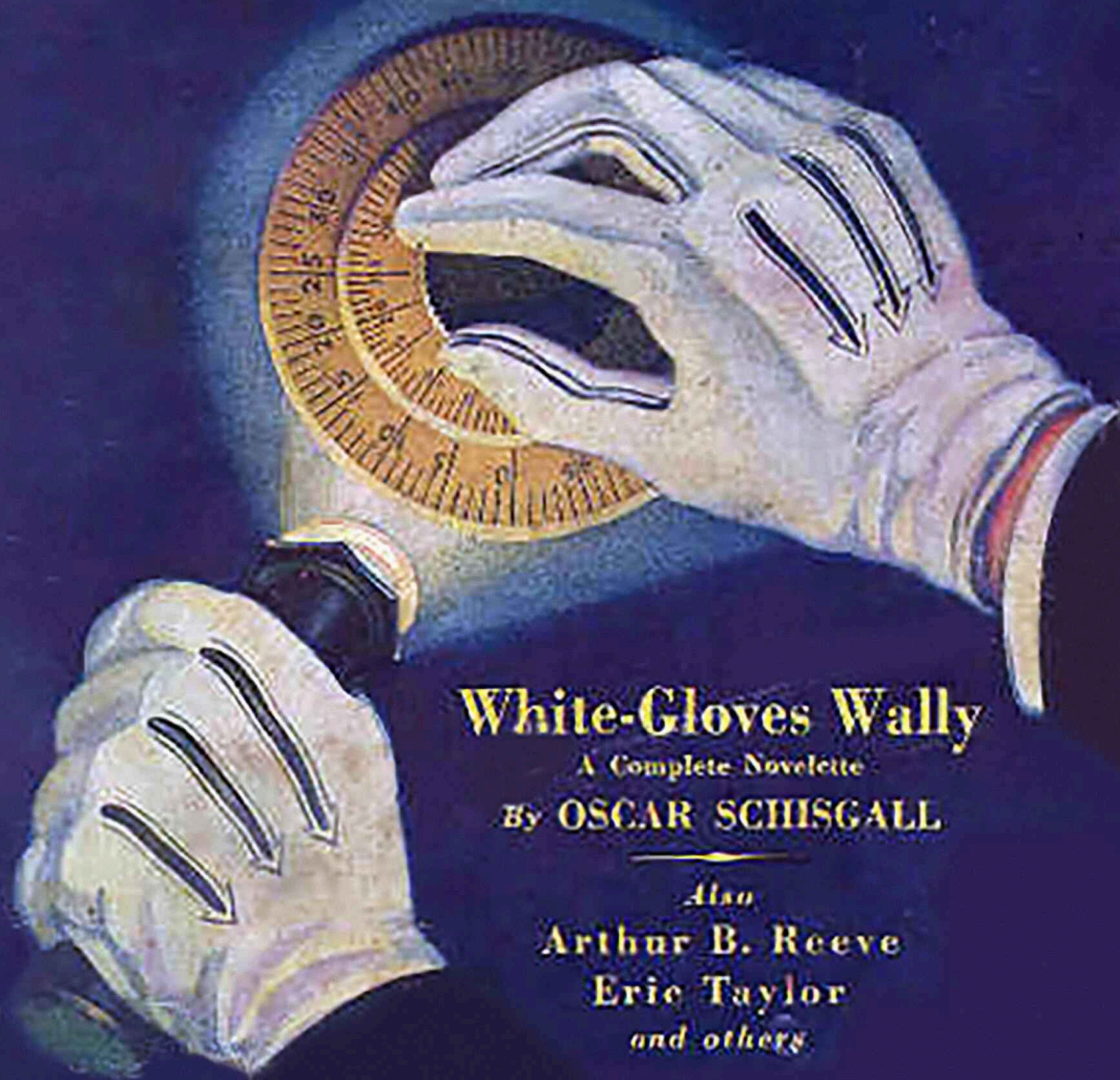
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Title: The surprise party

Author: Erle Stanley Gardner

Release date: April 10, 2026 [eBook #78409]

Language: English

Original publication: New York, NY: Clues, Incorporated, 1929

Other information and formats: www.gutenberg.org/ebooks/78409

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*** START OF THE PROJECT GUTENBERG EBOOK THE SURPRISE
PARTY ***



THE SURPRISE PARTY

By Erle Stanley Gardner

As soon as the High Collar Kid saw the man enter the telephone booth he prepared himself against an underworld surprise party.

The High Collar Kid noticed two things as he left the rooming house. One was that it was raining. And it took no particular powers of observation to note that fact. The second thing was that a figure lurking within the interior of a corner cigar store, turned rather abruptly from the counter and paused before a telephone booth, right hand resting on the door knob.

Only a man with unusual powers of observation would have noticed the latter fact. The High Collar Kid had unusual powers of observation. Otherwise he would not have been alive. Ten years is a long time for a man to play a lone hand in gangdom. But the High Collar Kid had seen 'em come and he'd seen 'em go.

Yet by not so much as the flicker of conscious gesture did he apprise the man at the cigar stand that shrewd eyes had observed him.

The Kid went directly to his enclosed car, jerked open the door, searched the damp interior with a swift flash of his flickering eyes, and climbed inside.

The pavements were swimming. Street lights gave wavy reflections which, in turn, were broken by the miniature geysers of water spattering the cement.

The starter whined, the motor purred, the gears clicked, the wheels turned. If any one was intending to follow the High Collar Kid he had better get busy and travel fast.

The dark, round eyes of the Kid flickered to the mirror over the windshield. As he snapped the gear shift back into high he watched the street behind. He passed the second corner at forty miles per hour, nor did he slow very much as he came to the third corner.

Headlights showed behind him. He swung the wheel. The wet pavements helped him around the corner. The windshield wiper beat a monotonous rhythm as it swung back and forth. Yet the rain descended faster than the rubber wiper could remove it.

He turned right again at the next corner, came back to the boulevard, pressed the throttle lower and lower.

The lighted business district dropped behind, gave place to a residential street upon which drab houses hid darkly behind dripping trees. A rubber coated policeman raised a whistle, then thought better of it. The car was going fifty miles an hour, no chance for pursuit.

Traffic laws meant nothing to the High Collar Kid—not when he had work to do and when a figure lurking across the street had gone to the telephone to notify some one of the Kid's departure.

The dark surfaced streets of the city gave way to the white concrete of the state highway. Good going here, not so much chance for a skid. The rain was beating with tree lashing fury. There was some wind. All in all, it was a bad night for speed. But the High Collar Kid was accustomed to taking chances.

He glanced at the clock on the illuminated dial of the car. Eleven forty. He'd be in Clarksburg at midnight. There wouldn't be much traffic on the

road, not on a night like this. It would be a wild ride. And he'd leave the highway before he came to Clarksburg, circle the city and come in from the other direction. That was just in case that telephone....

He gently eased the foot brake down upon the spinning, water throwing wheels. The windshield wiper increased its beat. Through the tapering section of windshield it cleared he saw a figure walking along the highway.

A quick glance at the speedometer showed it was eight miles from his starting point. The Kid noticed such things. It had been said of him that he noticed everything.

He slowed the car.

She was trim, comely. And she didn't have on so much as a raincoat. The dress was of some pale material which showed out well in the headlights. It was wet, but not soaking. The stockings were white. The shoes were mere slippers.

The headlights picked out her slender, young figure, showed the rhythm of the swinging hips, the steady swing of the walking legs.

She'd turn to see what the machine was going to do about it, and then the Kid could get a glance at her face.

But she did not turn.

The Kid slowed the car almost to a stop.

Rigid in her studied unconcern, the girl walked straight on. There was nothing ahead of her except mile after mile of dripping, rain splashed pavement, yet she utterly ignored the automobile almost at her side.

Abruptly the Kid thought of that hand on the knob of the telephone booth. Almost unconsciously, his foot snapped down on the throttle. The car skidded slightly, responded with a whine of acceleration.

The girl was behind; she had not so much as glanced at the car.

"Walking home," muttered the Kid.

Half a mile of wet pavement slipped beneath the glistening wheels of his car. He could not get the thought out of his mind of the solitary figure, striding so utterly alone in the storm tossed night.

If it should be a trap they'd know he'd passed. There would be ambushers waiting, concealed in a car somewhere near, or, perhaps, hiding

behind the trees. If she kept on walking after he'd passed, it would be a good sign the thing was on the level.

A side street showed, unpaved and muddy.

The Kid switched his lights over to the dim, slowed the car, skidded up the muddy side street, managed to turn the car without getting bogged down, and switched off both lights and motor.

Then his fingers crept beneath the pit of his left arm and snuggled about the hard butt of a deadly automatic.

He waited. The rain beat down on the car. He could even hear the whish of the trees, the spatter of water on the running boards as it dripped off the roof of the sedan. The drops gave forth a drumming sound as they lashed the enameled hood.

Minutes passed. He grinned. The girl had evidently vanished. She'd have been here by now.

He reached forward for the ignition switch.

At that moment something indistinct showed out on the highway, a blurry something of bedraggled white. He snapped on the lights.

As the twin pencils of glaring white stabbed the darkness and caught the girl fairly in the center of their rays, the High Collar Kid could see her scream. He saw the lips part, saw the terror in the eyes, saw the pearly teeth. But the wind swept the sound away. Such noise as she made failed to penetrate past the heavy plate glass upon which the rain slithered in rivulets.

The High Collar Kid started the motor.

She stood still while he drove alongside. When he stopped the car she started to walk again, steadily, rhythmically, utterly ignoring the car at her side.

The Kid had a way with women. Also he knew something about them. Far be it from the High Collar Kid to sit snugly behind the steering wheel and call out an invitation to ride.

He was out in the rain, hat in hand, the drops streaking down the starched surface of his glossy collar.

"I beg your pardon, but wouldn't you care to ride?"

The answer came without so much as the turn of a head.

"No!"

After a minute of rain spattered silence between them, she added “thank you.” But she hadn’t looked at him and she strode on into the night.

The Kid sighed and took his fingers from the butt of his gun.

“But it’s storming. You’ll catch cold. I won’t bite.”

She strode on in silent indifference.

The Kid saw that she was pretty, with the type of beauty which had always appealed to him. If she had been hand picked at his specification it couldn’t have been a better job. Slender, young, alert, not too curvy, yet well moulded. There was a firmness to the chin, a wideness to the eye, and a general air of complete sophistication.

He looked at the swirl of skirts where the wind had its way, and the headlights revealed what the wind disclosed. Then he climbed back in his car, drove on a hundred yards and waited for her to come up.

“I can’t let you walk this road alone. It’s nearly midnight. There’s no shelter. Either you get in and ride with me, or I get out and walk with you.”

He knew the moment she weakened.

There was a slight hesitancy, a wistful glance at the long lines of the massive, speedy car.

“It’s warm in there,” he coaxed, then was silent.

She smiled at him.

“You win. I guess I’m foolish,” she said, and climbed in.

The High Collar Kid chuckled. He closed the door on her, careful to see that her skirt was not caught in the closing of that door, walked around the machine and opened the other door.

It was such little touches of gallantry that characterized the Kid.

She was strangely silent as he settled himself into the seat. He glanced at her clothes. Strange they were not more rain-soaked. Her hand was fluttering at her breast.

He stiffened abruptly. Those clothes hadn’t been out in the storm very long.

His hand streaked to his left armpit.

By the time his fingers closed on the hard butt of the automatic he could feel the cold ring of steel at his neck.

“Bring that hand away empty,” she said.

The Kid hesitated for a long second. Had there been any one with her he would have taken a chance, come out shooting. It was always the way, go with smoke in his nostrils, and he wouldn't mind dying. But she was alone. Certainly there was no one in ambush. She had walked into the path of his lights. He sighed and brought his hand away—empty.

“Hold your hands on the steering wheel, tight!”

He grinned at her.

“Don't put me out, sister. I ain't got my roller skates. What say we split the roll fifty fifty and be friends?”

She darted a wet arm under his chin. He stiffened as his automatic was taken from its holster, tossed in the back of the car. But her gun was pushed into his neck, and women are nervous at such times.

She lifted her feet to the seat, threw one leg over the back and jumped into the rear of her car.

“Drive ahead, slowly.”

He complied with the order. Would she shoot? Could she hit? Suppose he threw the car into a devil of a skid? There'd be a mud patch along the road somewhere soon.

In the meantime there was her purse, lying on the seat at his side, a rain spattered affair of gray leather.

He drove with one hand, half turned, the better to talk with her over his shoulder.

“What is it, hold-up?”

There was a catch in her voice then.

“You ... you're going for a ride!”

The Kid knew as much, had known it from the moment that ring of steel was in his neck, but he merely smiled. As he smiled, his right hand dropped surreptitiously to the catch of the purse.

“What's the big idea? You got something against me?”

She shook her head. The violet eyes were wide with some emotion. The face was set and white. But the lips were firm.

“Not me. I'm making a piece of jack. They figured you'd fall for me.”

“Baby!” he said, as his fingers flipped the catch on the purse and started exploring the contents, “they figured right! Anybody'd fall for you, unless

he was blind or over ninety. And I'd fall for you twice!"

She snapped her lips together.

"Turn around and drive. And ... and quit talkin'."

The Kid figured she was weakening fast. He kept his face toward her.

"So you're takin' me for a ride, eh? When do you pull the trigger?"

"I ... I don't pull the trigger.... Oh, I wish they'd come!"

The Kid eased half way around, preparing to make a grab at that gun. Then, of a sudden, he knew he was too late. A car was following, a car that ran without lights.

He turned back in the seat. He heard the girl give a sob of relief. Lights switched on, bored into the interior of the car. Another machine drew alongside. The Kid could see the profile of the man on his side. Pete Pelton! Pete, the killer, dapper, cold, cynical, envious. And there was Smile Dugan in beside him. Dugan! The feature-battered ex-pug; raised from the gutter to become an expert in dirty work. His clock had struck.

The door of the other car was opening. Pete Pelton's dapper form was sliding to the running board of his car.

He could twist the steering wheel—perhaps. But Smile Dugan had a big automatic, and the look in Dugan's eyes told its own story. He could wait to shoot later, but he'd rather shoot now.

Yet, even in that moment of tense suspense, the High Collar Kid was noticing things. His right hand remained within the rain-soaked purse. His fingers encountered a stiff paper oblong, the envelope of a letter.

And that letter was moist. How did it get moist there within that purse?

The Kid slipped that letter from the purse even as he turned to greet killer Pete. His right hand flipped the letter in a side coat pocket, the fingers snapped the purse shut.

"Well, well, if it ain't Pete. Planning a little party, Pete?"

"Yeah. Planning a nice party for you, a little surprise party."

"I like surprises."

"*Maybe* you'll like this one. Move over. I'll drive. Get the gat, Myrtle?"

She nodded, mutely. In the back, her white face seemed cold as marble as it was outlined against the back drop of the rear window, the rain-filled night.

Smile Dugan was on the ground.

Would he get in back with the girl, or would he crowd three in the front? If he came in front and the girl was left in the back with a gun there was a chance, a bare chance that the Kid might arouse her sympathies.

Dugan opened the front door.

Pete Pelton jerked his head back, without moving over.

“Naw. Get in back with the broad. He’s got a way with the women an’ I don’t trust him with her, nor her with him.”

“That’s not fair!” she blazed. “I did everything according to instructions. I memorized every word....”

“Shut up!” said Pete.

The car swayed as Dugan’s huge bulk swung on the running board. The rear door slammed.

“Let’s go.”

The car, under the guidance of Pete Pelton, swung toward the center of the highway. The other car backed and turned.

“Going to use my own car for the job, eh? Walk home afterward?” asked the Kid, making conversation.

“Not us,” sneered Pete. “But tires leave a track out where we’re goin’. If there’s goin’ to be any tracks left we don’t want ’em to be our car. We’ll leave this car where your estate can find it.”

“What’s the idea?”

“You know?”

“Hell no. Jealous, Pete?”

“Never mind the chatter. You’ve got a good line. You might talk me out of it if you got started. Might. Ha, ha! This is once your line of salve won’t grease anything except the skids of hell!”

The Kid fell silent.

The girl in the back seat was sobbing.

“We gotta ditch the broad before we pull the job.”

It was Smile Dugan’s heavy voice.

Pete agreed with him without so much as turning his head.

“Sure.”

The Kid thought rapidly, which was the manner in which he was accustomed to think.

“You know who these men are, of course,” purred the High Collar Kid as he half turned toward the girl. “The glib one with the slicked hair is Pete Pelton. The *gentleman* seated beside you is Smile Dugan.”

“Say,” demanded Pete, “what’s the idea of all that?”

Smile Dugan twisted his thick, battered lips in the sneering smile that had earned him his underworld nickname.

“Let ’m talk. He won’t talk long. But let’s ditch the jane.”

“Town coming. We’ll get through that. Then Harry will follow along and pick her up.”

The car speeded up.

The lights of a hamlet glowed ahead, ribboned themselves on the cement, shone into the sedan, and flashed past.

The kid turned, slipped his hand from his right-hand coat pocket. As the street lights whisked by he read the address upon the envelope. “MISS MYRTLE MANLEY — HOTEL CRACKEN” The envelope had evidently been left with the clerk, for there was no stamp upon it, and a penciled figure in the lower corner showed “717.”

The Kid half swung, dropped the letter in his pocket, looked at the girl.

She was returning the gun she had used to hold him up with, dropping it back into the front of her wet waist. The curves of her body failed to entirely conceal the outline of the weapon.

“Why so silent?” jeered Pete.

“I was thinking, Pete.”

“Yeah. You’d better think. You was the smart kid that thought his way out of the Manser scrape when Finney went to the stir. You was the chap that thought up a lie that sprung you from the Carter case.”

“That’s not so and you know it,” said the Kid. “Probably you’ve used that line to get Dugan started on this trip. But you know it’s a lie.”

“Shut up!” yelled Pete. “Don’t you believe him, Dugan.”

“But it’s a fact,” purred the Kid. “I’ll give you the lowdown on that case, Dugan. When Carter was arrested somebody squealed to the D.A. It was a telephone conversation, and I can tell you who....”

The car skidded to a stop.

“By God, I’m going to finish it right here. I’m tired of all this yap, yap, yap.”

Dugan grunted, the girl half-screamed, “No, no, no!”

Pete slipped to the rain soaked pavement, reached in his arm, yanked the Kid out. Dugan’s eyes glinted with a light which comes only to the face of a killer about to gratify his lust for blood. The girl screamed. Dugan half flung her to the ground. She hit the wet cement, slipped, fell into the mud.

She arose, muddled, white, frightened. Dugan was leering at her.

“Want your map changed?” he asked.

“Shut up,” said Pete.

The Kid spoke rapidly, conscious of the half-raised weapon in Dugan’s hand, conscious of the sneering lips of Pelton.

“I hate to have you take the girl to the chair with you. You owe it to her to give her a break. For you fellows I’ve got no sympathy. It serves you right. You bungled the whole thing. You saps! The idea of writing a letter of instructions telling her just what to do, just where you’d meet her, just what to say.”

Pete’s eyes snapped wide. Dugan started. The girl half screamed.

“Bluff!” sneered Pete.

“Perhaps. But when the District Attorney introduces a letter addressed to Miss Myrtle Manley at the Hotel Cracken and asks that it be marked Exhibit A for the people, well, just think of me, will you?”

“What the hell do you know of that letter?”

Pete’s voice was strained, lacked its old-time assurance.

The girl was crying now, openly sobbing.

The High Collar Kid, standing in the rain, face to face with death, smiled patronizingly.

“You guys are boobs. I frisked the girl’s purse while you were taking me for a ride. I found the letter, knew what it was. She said she’d memorized her instructions. That letter had rain drops on it. So I flipped it out when we went through the town back there.

“You know how these small town constables are. One of ’em was on the corner. He saw the letter come out. That’ll get ’em in touch with the girl,

room seven seventeen. Finding my body will be all they need to put two and two together.”

Pete Pelton glanced at Smile Dugan.

“The damned liar. The car window was closed. There wasn’t any constable standing there.”

But Dugan wasn’t so sure, and Pete’s voice held an element of doubt.

“You have the letter in your purse, Myrtle?”

She nodded, dry-eyed with alarm now.

Pete reached into the car, opened the purse.

“Gone now,” he swore, and launched into a stream of abuse.

“The damned broad’s no good, bump her off too and she won’t squeal.”

Pete’s voice was almost hysterical.

Dugan half turned. His left fist came up, a jabbing blow of the ring, a savage, ripping blow. The girl staggered back under the impact of that blow.

The High Collar Kid opened his arms.

“You poor kid,” he said.

There was something masculine, protecting in his gesture; she slumped into his arms.

“Baloney!” said Pete.

The Kid’s hand flashed to the girl’s throat, plunged downward. The spitting streak of flame that stabbed from his fist seemed to dart directly into Pete’s breast.

He staggered back, cursed, spun on one heel, dropped his gun, clutched at his breast.

“You, too?” asked The Kid, his eyes narrowed to twin slits, the gun boring into Dugan’s stomach.

Dugan hastily elevated his hands.

“Get the gats, Myrtle,” said the Kid.

The girl scooped them up.

“Your gang will be along pretty quick in the follow car,” said the Kid. “I guess Pete got it in the shoulder. He’ll probably take some more killing another time.

“And don’t think I’m a squealer. I’ve got that letter in my pocket. I just ran a shindy on you guys. So long.”

The car purred away into the darkness. The two figures in the front seat showed silhouetted against the driving lights. The girl was leaned over, snuggled against the High Collar Kid.

Pete coughed weakly. Dugan bent over him.

“They’ll be along in a minute or two.”

“Damn him,” groaned Pete. “He always did have a way with the women! A hell of a surprise party! And I combed the town to get a broad that’d appeal to him first time he saw her. Stick a handkerchief in this damned bullet hole, will yuh?”

Transcriber’s Note: This story appeared in the December 25, 1929 issue of *Clues* magazine.

*** END OF THE PROJECT GUTENBERG EBOOK THE SURPRISE
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